

March 26, 2026

Senator Sharon Carson
President, New Hampshire Senate
State House Room 302
107 North Main Street
Concord NH 03301

Senator Regina Birdsell
Majority Leader, New Hampshire Senate
State House Room 302
107 North Main Street
Concord NH 03301

Senator Daryl Abbas
President Pro Tempore, New Hampshire Senate
State House Room 115
107 North Main Street
Concord NH 03301

Senator Rebecca Perkins Kwoka
Minority Leader, New Hampshire Senate
State House Room 120
107 North Main Street
Concord NH 03301

RE: Letter in Opposition to New Hampshire HB 1460-FN

Dear Senate President Carson, Majority Leader Birdsell, President Pro Tempore Abbas, and Minority Leader Kwoka:

On behalf of the advertising industry, we write to oppose New Hampshire HB 1460 as drafted.¹ We ask that HB 1460 be harmonized with existing law in New Hampshire. This approach would foster consistency and clarity for consumers and businesses.

If enacted, HB 1460 would amend RSA 507-H:6 to add a new controller duty: “Not sell the location and other sensitive data regarding children.”² While the goal of protecting data collected from children is broadly shared, HB 1460, as drafted, cuts across the structure New Hampshire just adopted in the New Hampshire Data Privacy Act (“NHDPa”) and risks creating a confusing, costly “two-track” privacy regime. The Senate should instead focus its efforts on harmonizing the bill with the NHDPa which consistently uses “known child” as the standard, aligned to trigger heightened obligations for children’s data.³ That approach provides New Hampshire business and parents more certainty and would help ensure data about children is appropriately safeguarded. By contrast, a flat prohibition on selling data “regarding children,” without the inclusion of any knowledge-based standard, risks creating conflict and confusion for businesses and consumers interpreting the different provisions in the NHDPa. Harmonizing HB 1460 with the existing “known child” standard would preserve strong protections while maintaining the defined terms the legislature has already chosen.

HB 1460 also departs from established statutory definitions by prohibiting the sale of “location data” rather than “precise geolocation data,” a term already defined and treated as sensitive under NHDPa.⁴ “Location data” is undefined and would create ambiguity. Using the

¹ New Hampshire HB 1460-FN (2026 Session), located [here](#) (hereinafter, “HB 1460”).

² HB 1460 §1.

³ N.H. Rev. Stat. Ann. § 507-H:6(I)(d) (stating: “A controller shall: Not process sensitive data concerning a consumer without obtaining the consumer's consent, or, in the case of the processing of sensitive data concerning a known child, without processing such data in accordance with COPPA...”).

⁴ N.H. Rev. Stat. Ann. § 507-H:1(XX), (XXVIII).

existing definition of “precise geolocation data,” and cross-referencing the NHDPA’s definition of “sensitive data,” would ensure consistency and clarity for business’s making every effort to comply. Without these changes, HB 1460 would contribute to a patchwork of differing privacy standards within New Hampshire law, increasing costs for businesses and consumers without providing commensurate privacy benefits.

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As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,000 companies that power the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product (“GDP”) in 2024.⁵ By one estimate, approximately 18.8% of New Hampshire jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 20.4% by 2029.⁶ Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We and our members strongly support meaningful privacy protections for consumers.

As currently drafted, the bill would create conflicting terms that do not align with the New Hampshire Data Privacy Act causing confusion and undue compliance burdens around location data and children’s privacy. We therefore respectfully ask the Senate to decline to advance HB 1460 as proposed. We would welcome the opportunity to engage further and work with you to craft a workable privacy framework that benefits New Hampshire consumers and businesses alike. Thank you in advance for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4As
202-355-4564

Clark Rector
Executive VP–Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria
CEO
Digital Advertising Alliance
347-770-0322

CC: Members of the New Hampshire Senate

Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Matthew Stern, Venable LLP

⁵ S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.

⁶ *Id.* at 15-16.